

December 20, 2019



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 20980

EXPIRATION DATE: 2021-11-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Clean Harbors, Inc.
Norwell, Ma
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the transportation in commerce of a DOT 407 specification cargo tank motor vehicle equipped with a dip tube that extends above the accident damage protection. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 178.345-8(c)(1), 178.345-8(c)(2).

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5. BASIS: This special permit is based on the application of Clean Harbors, Inc. dated November 27, 2019, submitted in accordance with § 107.117 and the determination that it is necessary to prevent an economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Titanium tetrachloride	6.1	UN1838	I

7. SAFETY CONTROL MEASURES:

- a. PACKAGING: The packaging is a DOT 407 specification cargo tank motor vehicle with a 7,000-gallon capacity. The DOT 407 specification cargo tank motor vehicle is identified as Tank# T4443 and has a vehicle identification number 3E1FB7233FSV21271.
- b. TESTING: The DOT 407 specification cargo tank motor vehicle must be externally inspected prior to being offered for transportation.
- c. OPERATIONAL CONTROLS:
- (1) This special permit authorizes the one-time, one-way transportation of DOT 407 specification cargo tank motor vehicle described above by highway. The shipment will originate from Deer Park, TX with transportation to a cleaning facility in Pasadena, TX.
- (2) The DOT 407 specification cargo tank motor vehicle must be unloaded, sealed, and the dip tube must be blanked off prior to being offered for transportation.
- (3) The noncompliant dip tube must be removed and all required tests and inspection must be conducted prior to the DOT 407 specification cargo tank motor vehicle identified in paragraph 7 (a) of this special permit being returned to hazardous materials service.

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(4) The drivers of the motor vehicle must have the capability to contact the appropriate emergency response organizations in the event of an accident or an emergency involving the hazardous materials being transported.

(5) No other hazardous material(s) shall be transported onboard the vehicle.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a packaging covered by this special permit, may reoffer it for transportation provided no modification or change is made to the packaging and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

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- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Leonard Majors/ Stacy Grey